

25STCV36833 25STCV36833

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Case Number: 25STCV36833 Hearing Date: August 12, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: August

12, 2026

CASE NAME: Michelle

Olivares Ramirez v. Din Tai Fung Century City Restaurant, LLC, et al.

CASE NO.: 25STCV36833

MOTION

TO COMPEL ARBITRATION

MOVING PARTY: Defendants

Din Tai Fung Century City Restaurant, LLC; Din Tai Fung; Din Tai Fung North America; and Hector Zeledon

RESPONDING PARTY(S): Plaintiff Michelle Olivares

Ramirez

REQUESTED RELIEF:

1. An

order compelling this matter to arbitration and issuing a stay pending arbitration.

TENTATIVE RULING:

1. Motion

to compel arbitration is GRANTED;

2. This

matter is ordered STAYED pending arbitration.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On December 17, 2025, Plaintiff Michelle Olivares Ramirez (Plaintiff) filed a complaint against Defendants Din Tai Fund Century City Restaurant, LLC; Din Tai Fung; Din Tai Fung North America; and Hector Zeledon (Defendants) with nine causes of action for: (1) discrimination in violation of FEHA; (2) hostile work environment in violation of FEHA; (3) retaliation in violation of FEHA; (4) failure to prevent discrimination, harassment, or retaliation in violation of FEHA; (5) failure to provide reasonable accommodation in violation of FEHA; (6) failure to engage in the interactive process in violation of FEHA; (7) interference with and retaliation for exercising pregnancy disability leave rights; (8) retaliation for using paid sick leave; and (9) wrongful termination of employment in violation of public policy.

According to the complaint, Plaintiff was a strong-performing Barista/Expo who became pregnant and sought pregnancy-related accommodations, including medically excused absences. After notifying multiple managers of her pregnancy and experiencing pregnancy-related illness and an emergency room visit, she received warnings tied to the company's attendance points system despite providing doctor's notes. On October 1, 2024—just weeks after disclosing her pregnancy—Plaintiff was terminated, allegedly under pretextual "attendance" grounds, which she claims were actually motivated by discrimination, retaliation, and failure to accommodate her pregnancy and related conditions.

On February 23, 2026, Defendants filed the instant motion to compel arbitration. On July 30, 2026, Plaintiff filed an opposition. On August 5, 2026, Defendants filed a reply.

LEGAL STANDARD:

The Federal Arbitration Act ("FAA"), while a federal statute, applies in California courts and requires state courts to enforce arbitration agreements as required by the federal common law developed under the FAA. (See, e.g., *Southland Corp. v. Keating*, 465 U.S. 1, 15-16 (1984); *Broughton v. Cigna Healthplans*, 21 Cal.4th 1066, 1074-78, superseded by statute on another ground as stated in *Ferguson v. Corinthian Colleges, Inc.*, 9th Cir. 2013) 733 F.3d 928, 937.) The FAA preempts and invalidates state law and state judicial decisions that disfavor arbitration or require arbitration provisions to pass higher scrutiny. (*Southland Corp.*, supra, at p. 12; *Perry v. Thomas*, 482 U.S. 483, 490.) If the parties designate the FAA applies, then California arbitration law is preempted. (See, e.g., *Rodriguez v. American Techs., Inc.*, 136 Cal.App.4th 1110, 1121-1122.) However, courts have found that where the FAA is found not to apply, the California Arbitration Act (Code Civ. Proc. § 1280 et seq.) applies. (See *Valencia v. Smyth*, 185 Cal.App.4th 153, 178 (Valencia).)

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A court's inquiry is limited to a determination of (1) whether a valid arbitration agreement exists and (2) whether the arbitration agreement covers the dispute. (9 U.S.C. § 4; *Chiron Corp. v. Ortho Diagnostics Systems, Inc.*, 9th Cir. 2000) 207 F.3d 1126, 1130; *Howsam v. Dean Witter Reynolds, Inc.*, 537 U.S. 79, 84; see *Simula, Inc. v. Autoliv, Inc.*, 9th Cir. 1999) 175 F.3d 716, 720 [if the finding is affirmative on both counts the FAA requires the Court to enforce the arbitration agreement in accordance with its terms]; see *Omar v. Ralphs Grocery Co.*, 118 Cal.App.4th 955, 961 [In determining the enforceability of an arbitration agreement, the court first considers "two 'gateway issues' of arbitrability: (1) whether there was an agreement to arbitrate between the parties, and (2) whether the agreement covered the dispute at issue"] *Lacayo v. Cataline Restaurant Group Inc.*, 38 Cal.App.5th 244, 257 (Lacayo) [Where moving party meets initial burden, "the party opposing arbitration must prove by a preponderance of the evidence any defense to the petition"].]

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The general rule is that the FAA governs all agreements to arbitrate in contracts "involving interstate commerce." (*Higgins v. Superior Court*, 140 Cal.App.4th 1238, 1247.) The term "involving" commerce "is broad and is indeed the functional equivalent of 'affecting' commerce." (*Allied-Bruce*

Terminix Companies, Inc. v. Dobson (1995) 513 U.S. 265, 273-274.) The U.S. Supreme Court has held that this broad interpretation includes employment contracts. (See Circuit City Stores v. Adams (2001) 532 U.S. 105, 106.) The defendant bears the burden of proving applicability of the FAA by showing that its activities constitute interstate commerce. (Hoover v. Am. Income Life Ins. Co. (2012) 206 Cal.App.4th 1193, 1207.) Failure to demonstrate that the employment agreement affects interstate commerce renders the FAA inapplicable. (See Lane v. Francis Capital Management LLC (2014) 224 Cal.App.4th 676, 687-688 (Lane); Woolls v. Superior Court (2005) 127 Cal.App.4th 197, 212.)

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Even where the FAA governs the interpretation of arbitration clauses, California law governs whether an arbitration agreement has been formed in the first instance. (Baker v. Osborne Development Corp. (2008) 159 Cal.App.4th 884, 893.)

As a threshold matter, the parties do not dispute that the FAA applies to this matter. It otherwise applies because the 2024 Agreement expressly states it does and Defendants engage in interstate commerce. (Declaration of Ryann Hanna ¶¶ 4, 7, Exhibit A, item 6.) Thus, the FAA applies.

ANALYSIS:

Evidentiary

Objections

The court is unaware of any legal authority which requires a court to rule on evidentiary objections on a motion, except as to a motion for summary motion/adjudication or a special motion to strike. ([CCP § 437c (q); CCP § 425.16 (b)(2); see also, Sweetwater Union High School Dist. v. Gilbane Building Co. (2019) 6 Cal.5th 931, 947-949.) Thus, the court declines to rule on these objections.

Request for

Judicial Notice

The court GRANTS Plaintiff's request to take judicial notice of Government Code section 12940(j)(4)(C) and DENIES Plaintiff's request for judicial notice as to remaining matters.[1]

Compel Arbitration

Defendants seek to enforce the February 5, 2024 Arbitration Agreement (Agreement). (Mot. 9:13-21; Reply 6, n. 1.)

i.

Existence
of Arbitration Agreement

“The party seeking to compel arbitration bears the burden of proving the existence of an arbitration agreement, while the party opposing the petition bears the burden of establishing a defense to the agreement's enforcement.” (Beco v. Fast Auto Loans (2022) 86 Cal.App.5th 292, 302.) To determine the existence of an arbitration agreement, the court uses “a three-step burden-shifting process.” (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755.) “The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. [Citations.] A movant can bear this initial burden ‘by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature.’” (Ibid. [internal citations omitted].) “If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence. . . .” (Ibid.) If the opposing party meets its burden to “submit sufficient evidence to create a factual dispute” as to the existence of the agreement, the burden shifts back to the arbitration proponent, who retains the ultimate burden of proving its existence by a preponderance of the evidence. (Ibid.)

Here, Defendants met their initial burden to show an arbitration agreement exists. Notably, they attach the two arbitration agreements Plaintiff signed on June 19, 2023 and February 5, 2024. (Declaration of Ryann Hanna (Hanna Decl.) ¶ 7, Exhibits A, B.)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (Gamboa

v. Northeast Community Clinic (2021) 72 Cal. App. 5th 158, 165 (Gamboa).) The evidence must be sufficient to create a factual dispute to shift the burden back to the arbitration proponent who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature. (Iyere supra, 87 Cal.App.5th at p. 755.)

Here, Plaintiff sufficiently challenged her signature. She avers under penalty of perjury that she was physically presented with documents to sign and does not recall signing documents electronically. (Declaration of Michelle Olivares Ramirez (Ramirez Decl.) ¶¶ 4, 5.) Under Gamboa, this is sufficient to return the burden back to Defendant since they are seeking to enforce an electronic signature.

Once Plaintiff challenges the validity of the signature, “defendants were then required to establish by a preponderance of the evidence that the signature was authentic.” (Espejo

v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1060 (Espejo).) Espejo dealt with an electronic signature. In Espejo, the

supplemental declaration of the systems consultant provided the necessary information to establish the authenticity of the document, specifically how the unique username and password were only accessible to that specific individual. (Id. at 1062). In Gamboa, in contrast, the trial court

determined the employer failed to sustain its burden of proof because it presented no admissible evidence rebutting the employee's claim denying remembering signing any arbitration document. (Gamboa, supra, 72 Cal.App.5th at 169.) The Gamboa panel found no error in the trial court's order.

Here, Defendant met their burden to authenticate Plaintiff's electronic signature by a preponderance of the evidence. First, Defendants provides evidence that they do not have a practice of distributing physical copies of onboarding documents, updated policies, or employment-related documents for acknowledgement or signature. (Supplemental Declaration of Ryann Hanna (Supp Hanna Decl.) ¶ 5.) Second, Defendants have no copies of any documents physically signed by Plaintiff. (Id. at ¶ 6.) Instead, they only have electronically signed employment documents, including the two arbitration agreements, her Form I-9, and Form W-4. (Id. at ¶ 7.) Third, Defendants articulate that, through the Paycom system, the employee creates a unique username and password that is only accessible to them to complete employment paperwork. (Hanna Decl. ¶¶ 9, 10, 11.) The system cannot be accessed except by the employee. (Ibid.) Considered together, this sufficiently authenticates Plaintiff's electronic signatures on

the 2024 agreement Defendants seek to enforce.

ii.

Application

to Current Dispute – Ending Forced Arbitration of Sexual Harassment/Assault (EFAA) Applicability

Plaintiff argues the Agreement is barred under EFAA due to her pregnancy harassment claim. Specifically, she argues that she pleads termination and other adverse actions due to her pregnancy since the termination was a hostile message concerning her pregnancy.

Defendants reply that Plaintiff has not plausibly alleged a pregnancy harassment (rather than a pregnancy discrimination) claim, her allegations are merely conclusions, and there are no allegations of a hostile message.

The term “sexual harassment dispute” means a dispute relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State Law. (9 U.S.C.A. § 401(d).) “[A]t the election of the person alleging conduct constituting a sexual harassment dispute . . . no dispute arbitration agreement . . . shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the . . . sexual harassment dispute.” (Id. at § 402(a).) (italics added.) “An issue as to whether this chapter applies with respect to a dispute shall be determined under Federal Law.” (Id. at subd. (b).) “Under the EFAA, when a plaintiff’s lawsuit contains at least one claim that fits within the scope of the act, the arbitration agreement is unenforceable as to all claims asserted in the lawsuit.” (Liu v. Miniso Depot CA, Inc. (2024) 105 Cal.App.5th 791, 800 (Liu).)

Under FEHA, an employer cannot harass an employee because of sex, which includes sexual harassment, gender harassment, and harassment based on pregnancy, childbirth, or related medical conditions. (Gov. Code §§ 12940(j)(1) and (j)(4)(C).)

An employee “claiming harassment based upon a hostile work environment must demonstrate that the conduct complained of was severe enough or sufficiently pervasive to alter the conditions of employment and create a

work environment that qualifies as hostile or abusive to employees because of their sex.” (Lyle v. Warner Brothers Television Productions (2006) 38 Cal.4th 264, 279 (Lyle).) The employee must be subjected to “sexual advances, conduct, or comments” that were: “(1) unwelcome;” “(2) because of sex;” and “(3) sufficiently severe or pervasive to alter the conditions of [their] employment and create an abusive work environment.” (Ibid.) Such conduct must also be “imputable to [their] employer” (Ibid.)

Courts look at “all the circumstances” including “the frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee’s work performance.” (Holmes v. Petrovich Development Co., LLC (2011) 191 Cal.App.4th 1047, 1059.) The environment “must be both objectively and subjectively offensive, one that a reasonable person would find hostile or abusive, and one that the victim in fact did perceive to be so.” (Ibid.) There is no recovery for harassment that is “occasional, isolated, sporadic, or trivial.” (Id. at p. 1061.) “Rather, a plaintiff must show a concerted pattern of harassment that is repeated, routine, or generalized in nature.” (Ibid.)

“[H]arassment often does not involve any official exercise of delegated power on behalf of the employer.” (Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 706.) “[H]arassment focuses on situations in which the social environment of the workplace becomes intolerable because the harassment (whether verbal, physical, or visual) communicates an offensive message to the harassed employee.” (Ibid.) Commonly necessary personnel management actions do not come within the meaning of harassment even though they may retrospectively be found discriminatory if based on improper motives. (Id. at p. 707 [discussing promotions by one supervisor of only women as conveying hostile message to non-favored employees that women were sexual playthings].) Official employment actions “can also have a secondary effect of communicating a hostile message” when “the actions establish a widespread pattern of bias.” (Id. at p. 709.)

Here, Plaintiff’s hostile work environment harassment claim based on her pregnancy is insufficiently alleged to invoke EFAA. First, Plaintiff does not allege repeated, routine, or generalized harassment based on her pregnancy. Instead, she alleges her managers congratulated her upon sharing the news, informed her she needed a doctor’s note for accommodations beyond what the law already provided, she was not required to share pregnancy test results to receive accommodations since this was personal information, she was

covered by law once pregnant, and to communicate with leaders or her team when she needed breaks or to sit. (Compl. ¶¶ 14(f), (j).) Second, Plaintiff's only allegation supporting this claim is Defendant Zeledon's October 1, 2024 decision to terminate her due to attendance. (Compl. ¶ 17(a).) She alleges that Defendant Zeledon referred to "the recent messages" on the Manager Hotline in connection with the termination decision which meant the termination was based on her pregnancy-related call-outs. (Ibid.)

There are no allegations that this one interaction with Defendant Zeledon conveyed a hostile message through official actions establishing a widespread pattern of bias. Indeed, Plaintiff alleged pre-pregnancy attendance issues and being informed in August of 2024 that her attendance points were close to zero. (Compl. ¶ 14(d).) Taken together, these allegations do not support a claim for hostile work environment harassment.

Therefore, EFAA does not apply.

The parties do not otherwise argue the Agreement does not cover the subject dispute. In fact, the Agreement covers claims for "wrongful termination, discrimination, harassment, retaliation, . . . and torts" (Hanna Decl., Exhibit A.)

Accordingly, an enforceable arbitration agreement exists.[2]

iii.

Who

is Bound – Third Party Enforcement

The Agreement is between Din Tain Fund (Century City) Restaurant L, defined as "the Company," and Plaintiff. (Hanna Decl., Exhibit A, item 1.) Defendants contend that the remaining Defendants may enforce the Agreement as third party beneficiaries since Plaintiff alleges joint employment/alter ego theories and the Agreement covers claims against the Company's "parent, subsidiaries, affiliates. . . as well as against owners, directors, officers, managers, employees, agents," (Hanna Decl., Exhibit A, item 3.)

Plaintiff did not directly address this in her opposition.

Rather, she challenges the lack of any signature by Defendants on the Agreement.

Generally, “only a party to an arbitration agreement is bound by or may enforce the agreement.” (Thomas v. Westlake (2012) 204 Cal.App.4th 605, 613.) One exception to this general rule provides that “when a plaintiff alleges a defendant acted as an agent of a party to an arbitration agreement, the defendant may enforce the agreement even though the defendant is not a party thereto.” (Id. at p. 614.)

Here, the exception allowing all Defendants to compel arbitration applies. Notably, Plaintiff alleged that all Defendants are alter egos of one another, are agents, and directly employed her. (Compl. ¶¶ 4, 5.)

Therefore, all Defendants may enforce the Agreement.

iv.

Defenses

to Enforceability

In *Armendariz*, the California Supreme Court stated that when determining whether an arbitration agreement was unconscionable, there is both a procedural and a substantive element. (*Armendariz v. Foundation Health Psychcare Service, Inc.* (2000) 24 Cal.4th 82, 114 (*Armendariz*)).

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a.

Procedural

Unconscionability¿

Plaintiff argues the Agreement is procedurally unconscionable because it was a requirement for her employment, no one explained it to her, and she was rushed through executing it.

Defendants reply that the Agreement was voluntary, not a condition of employment, and they are not required to explain the Agreement to her.

Courts determine whether an agreement is procedurally unconscionable by looking at surprise and oppression. Oppression is an

“inequality of bargaining power, when one party has no real power to negotiate or a meaningful choice. Surprise occurs when the allegedly unconscionable provision is hidden.” (Carmona v. Lincoln Millennium Car Wash, Inc. (2014) 226 Cal.App.4th 74, 84 (Carmona).) Examples of contracts that are procedurally unconscionable are contracts of adhesion, which is a “standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.” (Armendariz, supra, at p. 113). “The circumstances relevant to establishing oppression include, but are not limited to (1) the amount of time the party is given to consider the proposed contract; (2) the amount and type of pressure exerted on the party to sign the proposed contract; (3) the length of the proposed contract and the length and complexity of the challenged provision; (4) the education and experience of the party; and (5) whether the party’s review of the proposed contract was aided by an attorney. (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 126-27 (OTO).) “

Here, there is minimal procedural unconscionability. “When arbitration is a condition of employment, there is inherently economic pressure on the employee to accept arbitration. This alone is a fairly low level of procedural unconscionability.” (Cisneros Alvarez v. Altamed Health Services Corporation (2021) 60 Cal.App.5th 572, 591). Despite Defendants’ assertions, there are no opt-out provisions in the Agreement and no other terms indicating it was not a condition of Plaintiff’s continued employment. The only purported language appears above Plaintiff’s electronic signature where she “confirms” that she “voluntarily agree[s]” to be bound by the Agreement. (Hanna Decl., Exhibit A.) The court is hard-pressed to conclude this represents an ability to refuse the Agreement while remaining employed. Next, there is no evidence as to how much time Plaintiff had to review and sign the Agreement aside from her characterization that she felt rushed when called in to the HR office to review and sign it. (Ramirez Decl. ¶ 5.) This is thus distinguishable from OTO, where the employee would be financially penalized by spending time to review the agreement and the agreement was selected by a low-level employee which created the impression that any requests for explanation would be unavailing. (OTO, supra, 8 Cal.5th at p. 127-128.) Like, OTO, though, Plaintiff was not presented with a copy of the agreement that he signed. (See Id. ¶ 6.) Still, considered together, these factors weigh against surprise or oppression. Nonetheless, it is an adhesive contract as it was an employment

condition.

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Thus, the Agreement has some procedurally unconscionability.¿

b.

Substantive

Unconscionability

Plaintiff argues the Agreement is substantively unconscionable because Defendants seek to enforce multiple agreements, it lacks mutuality without Defendants signature, provides Defendants with an unfair advantage in the arbitrator-selection process, and contains an illegal PAGA waiver.[3]

Defendants reply that the Agreement is not substantively unconscionable because they only seek to enforce the 2024 Agreement, providing their ability to initiate the strike-first process is not unconscionable, and there is no PAGA waiver.

“Substantive unconscionability pertains to the fairness of an agreement’s actual terms and to assessments of whether they are overly harsh or one-sided.” (Carmona, supra, at p. 85). There are five minimum substantive requirements to an enforceable arbitration agreement: (1) neutral arbitrators, (2) more than minimal discovery, (3) written award sufficient for judicial review, (4) all types of relief otherwise available in court, and (5) no unreasonable costs or fees as a condition of access. (Armendariz, supra, at p.102.) When there is little procedural unconscionability, a party opposing arbitration must show substantial substantive unconscionability. (Id. at 114.)¿¿

Here, the Agreement is not substantively unconscionable.

First, Defendants seek to enforce only one agreement – the 2024 Agreement.

Therefore, there are no inconsistent terms. Second, Defendants’ initiation of a strike procedure is not substantively unconscionable because the process still

provides for the selection of a neutral arbitrator. (Epstein v. Vision Service Plan (2020) 56 Cal.App.5th 223, 240.) Put differently, the Agreement allows for the selection of a neutral arbitrator.

Finally, there is no PAGA waiver. Instead, the Agreement provides that

non-individual PAGA claims “will be stayed in court pending completion of the arbitration of any concurrently raised arbitrable disputes and individual claims covered by this Agreement.” (Hanna Decl., Exhibit A, item 4.) Thus, there is no substantive unconscionability.

Accordingly, the court GRANTS Defendants’ motion to compel arbitration.

CONCLUSION:

For
the foregoing reasons, the Court decides the pending motion as follows:

1. Motion
to compel arbitration is GRANTED;

2. This
matter is ordered STAYED pending arbitration.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 12, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]The court may decline to take judicial notice of
materials not “necessary, helpful or relevant.”

(Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison
(1998) 18 Cal.4th 739, 748, fn. 6.)

The remaining three exhibits that Plaintiff requests
that the court take judicial notice are unpublished orders of various Superior
Courts throughout the state. This practice not only overloads trial courts with
unnecessary filings, but it is also highly inappropriate. First, California
Rule of Court, rule 8.115(b), prohibits citing or relying on unpublished

decisions except for reasons not applicable here. Second, “A written trial court ruling in another case has no precedential value. .” (Budrow v. Dave & Buster’s of California (2009) 171 Cal.App.4th 875, 885; Bolanos v. Superior Court (2008) 169 Cal.App.4th 744, 761; In re Molz (2015) 127 Cal.App.4th 836, 845; Santa Ana Medical Hospital Center v. Belshé (1997) 56 Cal.App.4th 819, 831.)

[2]

The court rejects Plaintiff’s other argument that there is no manifestation of intent to enter into the Agreement by Defendants due to a lack of their signature. Defendants’ preparation and seeking to enforce the Agreement demonstrates their implied in fact acceptance. (See Ramirez v. Golden Queen Mining Co., LLC (2024 102 Cal.App.5th 821, 830, n. 2 [“[A] signature manifesting assent to arbitration need not be on the arbitration agreement itself.”].) While discussing the context of an employee rather than the employer, the facts of this case clearly demonstrate Defendants’ intent to be bound.

[3]

The court refers to the prior footnote on the lack of signature argument.